

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
ERNESTO MATEO A/K/A ERNESTO MARTINEZ,

Plaintiff,

-against-

CITY OF NEW YORK, ANTHONY LAFARRELL, IN  
HIS INDIVIDUAL AND OFFICIAL CAPACITY AS A  
POLICE OFFICER, YAJAIRA GALINDEZ,  
INDIVIDUALLY, JOSE RAMIREZ, INDIVIDUALLY,  
and JOHN or JANE DOES 1-10,

Defendants.  
-----X

Index No.

Plaintiff designates  
Bronx County as the place of trial

The basis of the venue is where the  
injury occurred

**SUMMONS**

**TO THE ABOVE-NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York  
February 4, 2020



**SIM & DEPAOLA, LLP**

By: Samuel C. DePaola, Esq.

*Attorneys for Plaintiff(s)*

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TO: CORPORATION COUNSEL OF  
THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

ANTHONY LAFARRELL, Detective  
Shield No. 4993, Tax Reg. No. 953005  
Bronx Special Victims Unit  
1086 Simpson Avenue  
Bronx, New York 10459

YAJAIRA GALINDEZ, Parole Officer  
Shield No. 529, Bx 2  
14 Bruckner Blvd  
The Bronx, New York 10454

JOSE RAMIREZ, Parole Officer  
Shield No. 1906, Bx 4  
14 Bruckner Blvd  
The Bronx, New York 10454

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
ERNESTO MATEO A/K/A ERNESTO MARTINEZ,

VERIFIED COMPLAINT

Plaintiff,

Index No.

-against-

CITY OF NEW YORK, ANTHONY LAFARRELL, IN  
HIS INDIVIDUAL AND OFFICIAL CAPACITY AS A  
POLICE OFFICER, YAJAIRA GALINDEZ,  
INDIVIDUALLY, JOSE RAMIREZ, INDIVIDUALLY,  
AND JOHN OR JANE DOES 1-10,

Defendants.  
-----X

Plaintiff, Ernesto Mateo A/K/A Ernesto Martinez, by his attorneys, Sim & DePaola, LLP,  
for his complaint against the above Defendants, City of New York, Anthony LaFarrell,  
individually and his official capacity as a police officer, Yajaira Galindez, individually, Jose  
Ramirez, individually, and John or Jane Does 1-10, alleges and states as follows:

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. §§ 1983, 1985, 1986 and 1988 for the violations of his civil rights protected by Constitution of the United States and the Constitution and laws of the State of New York.
2. Plaintiff's claims arise from a October 4, 2018 incident, in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Mateo. Plaintiff was thereafter denied his right to fair trial and maliciously prosecuted by defendants.
3. Plaintiff seeks monetary damages (compensatory and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

**PARTIES**

4. Plaintiff, Ernesto Mateo A/K/A Ernesto Martinez ("Mr. Mateo"), is male Hispanic or Latino, who resides in Bronx County, within the City and State of New York.

5. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

6. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

7. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

8. Defendant, Anthony LaFarrell ("LaFarrell"), was, at all times here relevant, a police officer or detective employed by the NYPD and, as such, was acting in the capacity of an agent, servant and employee of the City of New York. Defendant LaFarrell was, at the time relevant herein, a police officer or detective in the NYPD, assigned to the Bronx Special Victims Unit, located at 1086 Simpson Street, Bronx, New York 10459. Defendant LaFarrell is being sued in his individual and official capacities.

9. Defendants, Yajaira Galindez ("Galindez") and Jose Ramirez ("Ramirez"), were, at all times here relevant, parole officers or supervisors, employed by the New York State Department of Corrections, Division of Parole. Defendant Galindez, Shield 529, was, at all relevant times, assigned to Bronx Area 2 and Defendant Ramirez, Shield 1906, was, at all relevant times,

assigned to Bronx Area 4. Defendants Galindez and Ramirez are being in their individual capacities.

10. At all times relevant Defendants, John or Jane Does 1-10, were police officers, parole officers, detectives, supervisors, policymakers or officials employed by the NYPD, City of New York or the State of New York. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants, John or Jane Does 1-10, as such knowledge is in the exclusive possession of the Defendants.

11. At all times relevant herein, Defendants, John or Jane Does 1-10, were acting as agents, servants and employees of the State of New York, City of New York or the NYPD. Defendants, John or Jane Does 1-10, are being sued in their individual and official capacities.

12. At all times here mentioned, Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

13. Within 90 days of accrual dates for these claims, Plaintiff timely filed, *nunc pro tunc*, a written notice of claim with the New York City Office of the Comptroller.

14. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

15. Plaintiff has complied with municipal defendant's request for an oral examination, pursuant to Section 50-H of the New York General Municipal Law or such request has not been made within the time permitted.

**FACTUAL CHARGES**

16. On, or about, October 4, 2018, at approximately 9:00 p.m., plaintiff was inside of his apartment residence, located at 1177 Anderson Avenue, Apt. 5E, within the County of Bronx, City and State of New York.

17. On said date, time and location, Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, illegally entered the above mentioned location by pushing the front door opened and barging in without consent, probable cause or a judicially authorized search or arrest warrant to do so.

18. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, then illegally searched plaintiff's residence and his person.

19. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, then physically restrained plaintiff by grabbing his arms and wrists.

20. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, then violently contorted plaintiff's arms and wrists behind his back and applied metal handcuffs in an excessively tight fashion, all of which caused plaintiff to suffer substantial physical pain and injuries.

21. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, also applied metal shackles to plaintiff's ankles in an excessively tight fashion, which caused plaintiff to suffer substantial physical pain and injuries.

22. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, then forcibly removed plaintiff to a local NYPD precinct against his will.

23. At the precinct, Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, subjected plaintiff to additional searches and interrogations and was placed in

multiple line-ups without informing plaintiff of his rights, pursuant to *Miranda*, and without providing plaintiff with the assistance of counsel, despite his numerous requests for an attorney.

24. Plaintiff was eventually released from defendants' physical custody on October 5, 2018, at approximately 5:00 p.m., without being charged with any crimes or violations of the law.

25. Plaintiff eventually learned that he was wrongfully arrested for the attempted rape of a elderly woman.

26. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, arrested plaintiff without probable cause or reasonable suspicion to do so, because defendants did not possess any evidence that plaintiff committed any crimes or violations of the law, including attempted rape.

27. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, were not informed by any witnesses that plaintiff committed any crimes or violations of the law, including attempted rape.

28. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, did not observe plaintiff commit any crimes or violations of the law, including attempted rape.

29. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, did not possess any physical or circumstantial evidence showing that plaintiff committed any crime or violation of the law, including rape or attempted rape.

30. At all times relevant hereto, Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause or using excessive force to effectuate his arrest.

31. On October 6, 2018, at approximately 8:00 a.m., plaintiff was inside of his residence at 1177 Anderson Avenue, Apartment 5E, Bronx, New York, when defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, again entered the residence without a judicially authorized warrant, probable cause or consent to do so.

32. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, proceeded to physically grab and restrain plaintiff by violently contorting his arms and wrists behind his back.

33. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, then affixed metal handcuffs to plaintiff's wrists in an excessively tight fashion.

34. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, had no probable cause or any other legal justification to search and seize plaintiff's person, as he had not violated law or any condition of his parole.

35. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, arrested and violated plaintiff based solely on their fabricated observations that were forwarded to officials, so that a warrant would issue for plaintiff's arrest and plaintiff would be sentenced to prison for said fabricated parole violations.

36. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, forwarded fabricated information in the form of their observations to parole officials or other individuals, so that plaintiff would be found guilty of violating of his parole conditions and sentenced to prison.

37. Due to the fabricated observations and suppression of evidence by defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, a parole hearing officer or



administrative law judge determined that there was probable cause to believe that plaintiff violated certain conditions of his parole.

38. Plaintiff was thereafter sentenced and was caused to be wrongfully incarcerated for an additional eight (8) months.

39. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, were full aware that plaintiff had not violated his parole conditions or any other law, but still falsely claimed to have observed him violate his parole conditions, because defendants still believed him to be guilty of the attempted rape, despite the complete lack of evidence.

40. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, therefore arrested and initiated parole hearing proceedings against plaintiff, not because they believed that he was guilty of any of the alleged violations, but because of their desire punish him for the attempted rape, which defendants were unable to hold or prosecute plaintiff for.

41. Defendants, including LaFarrell, Galindez, Ramirez and John or Jane Does 1-10, engaged in a conspiracy to ensure that plaintiff was imprisoned, regardless of the dearth of evidence against him.

42. At all times relevant hereto, Defendants, including LaFarrell, John or Jane Does 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's wrongful arrest and subsequent malicious prosecution and denial of right to fair trial.

43. Plaintiff asserts that the Defendants, including LaFarrell Galindez, Ramirez and John or Jane Does 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become

tantamount to an official policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

44. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

45. In a report by *NBC Channel 4 News, New York*, entitled “Ex NYPD Sergeant Accused of Assaulting Man at Homeless Shelter, Stomping on His Head More Than 10 Times,” by Jonathan Dienst and Joe Valiquette, horrific allegations against a former NYPD police sergeant were detailed, including his use of extreme and excessive force, as well as his falsifying evidence that was forwarded to prosecutors. The former NYPD sergeant is no longer by NYPD and his criminal case is presently being prosecuted by the United States Attorney’s Office for the Southern District of New York. Another article from *citylimits.org*, entitled “CityViews: Is NYPD Oversight Really making Homeless Shelters Safer,” by Daniel Castillo, discusses how the NYPD police officers have begun to jointly enforce the law within many homeless shelters, but how such added policing has only worsened the already crime riddled areas. It also details how ongoing problems have only deteriorated since the newly enacted joint jurisdiction.

46. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses.. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

47. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

48. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

49. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

50. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh,

*The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

51. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

52. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff’s arrest without probable cause.

53. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

54. Defendants’ actions, pursuant to Plaintiff’s underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff’s civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such

flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD or City of New York.

55. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD, and the City of New York.

56. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

57. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Lafarrell, John or Jane Does 1-10.

58. As a direct and proximate result of the acts of defendants, including the City, Lafarrell, Galindez, Ramirez and John or Jane Does 1-10, Plaintiff suffered the following injuries and o: violations of his rights, pursuant to the Fourth, Sixth and Fourteenth Amendments the United States Constitution, violations of New York State law and the New York State Constitution, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

**FIRST CAUSE OF ACTION**  
Unlawful Search and Seizure Under  
New York State Law

59. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

60. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

61. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

62. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

63. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

64. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

65. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

66. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**SECOND CAUSE OF ACTION**  
Unlawful Search and Seizure Under  
42 U.S.C. § 1983 Against Individual Defendants

67. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

68. Defendants subjected plaintiff and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

69. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

70. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

71. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

72. Accordingly, Defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

73. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**THIRD CAUSE OF ACTION**  
False Arrest and False Imprisonment Under  
New York State Law



74. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

75. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

76. Plaintiff was conscious of his confinement.

77. Plaintiff did not consent to his confinement.

78. Plaintiff's arrest and false imprisonment was not otherwise privileged.

79. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **FOURTH CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
42 U.S.C. § 1983 Against Individual Defendants

81. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

82. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

83. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

84. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

85. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**FIFTH CAUSE OF ACTION**

Assault and Battery Under  
New York State Law

86. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

87. Defendants made Plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.

88. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without him consent.

89. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

**SIXTH CAUSE OF ACTION**

Excessive Force Under  
42 U.S.C. § 1983 Against Individual Defendants

91. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

92. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

93. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

94. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

**SEVENTH CAUSE OF ACTION**

Malicious Prosecution Under  
New York State Law

95. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

96. Defendants initiated the prosecution against Plaintiff.

97. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

98. Defendants acted with malice.

99. The prosecution or parole violation hearing was terminated in Plaintiff's favor when all criminal and parole charges violations, allegations or specifications were dismissed and sealed.

100. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

**EIGHTH CAUSE OF ACTION**

Malicious Prosecution Under  
42 U.S.C. § 1983 Against Individual Defendants

102. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

103. Defendants initiated the prosecution against Plaintiff.

104. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

105. Defendants acted with malice.

106. The prosecution or parole violation hearing was terminated in Plaintiff's favor, when all criminal charges and parole charges violations, allegations or specifications were dismissed and sealed.

107. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**NINTH CAUSE OF ACTION**  
Denial of Right to Fair Trial Under  
New York State Law

109. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

110. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a fact-finder's decision.

111. Defendants forwarded said fabrications to officials to be used against plaintiff.

112. Defendants' actions resulted in substantial deprivations to plaintiff's liberty and freedom of movement, including his incarceration.

113. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

114. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**TENTH CAUSE OF ACTION**

Denial of Right to Fair Trial Under  
42 U.S.C. § 1983 Against Individual Defendants

116. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

117. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a fact-finder's decision.

118. Defendants forwarded said fabrications to officials of the New York State Division of Parole or others to be used against plaintiff during his parole violation hearing.

119. Defendants' actions resulted in substantial deprivations to plaintiff's liberty and freedom of movement, including his incarceration for over eight (8) months.

120. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution.

121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**ELEVENTH CAUSE OF ACTION**

Failure to Intervene Under  
New York State Law

122. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

123. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

124. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**TWELFTH CAUSE OF ACTION**

Failure to Intervene Under  
42 U.S.C. § 1983 Against Individual Defendants

126. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

127. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

128. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**THIRTEENTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
New York State Law

130. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

131. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

132. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

133. Defendants intended to inflict substantial harm upon Plaintiff.

134. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

135. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

136. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **FOURTEENTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
42 U.S.C. § 1983 Against Individual Defendants

137. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

138. Defendants arrested, detained and caused a parole violation hearing or other similar proceeding to be initiated against Plaintiff to compel the compliance or forbearance of some act.

139. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

140. Defendants intended to inflict substantial harm upon Plaintiff.

141. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

142. Defendants' actions deprived Plaintiff of his constitutional rights, under the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

143. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **FIFTEENTH CAUSE OF ACTION**

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under  
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

144. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

145. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, to the equal protection of the laws, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

146. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

147. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

148. Defendants' conspiracy was motivated by a desire to inhibit or punish Plaintiff for exercising his constitutional rights, or because of some racial, otherwise class-based, invidious or discriminatory animus.

149. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

150. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

151. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**SIXTEENTH CAUSE OF ACTION**

Negligent Hiring, Training, Retention and Supervision Under  
New York State Law



152. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

153. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

154. Defendant City breached those duties of care.

155. Defendant City placed defendants in a position where they could inflict foreseeable harm.

156. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

157. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

158. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**SEVENTEENTH CAUSE OF ACTION**

Municipal "*Monell*" Liability Under  
42 U.S.C. § 1983 Against Defendant City

159. Plaintiff re-alleges and re-avers all preceding paragraphs of this Complaint as if fully set forth herein.

160. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

161. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

162. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

163. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

164. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

165. Defendant City's conduct caused the violation of plaintiff's civil rights enumerated within the Constitution of the United States, pursuant to the Fourth, Sixth and Fourteenth Amendments.

166. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**WHEREFORE**, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- s) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988 and the New York State Civil Rights Law;
- Together with the costs and disbursements of this action.

**JURY DEMAND**

Plaintiff demands a trial by jury.

Dated: February 4, 2020



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## ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
Februaru 4, 2020

  
\_\_\_\_\_  
SAMUEL C. DEPAOLA, ESQ.